



SPONSOR: Rep. Carson & Sen. Hoffner
Reps. Hilovsky, Snyder-Hall, Harris

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 39

AN ACT TO AMEND TITLE 25 OF THE DELAWARE CODE RELATING TO MAINTENANCE AND TIME
COMPUTATION IN MANUFACTURED HOME COMMUNITIES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 70, Title 25 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 7002A. Time computation.

A period of time prescribed or allowed under this chapter, is computed as follows:

(1) The day of the act, event, or default from which the designated period of time begins to run is not
included.

(2) When the period of time prescribed is 12 days or less, the computation does not include Saturdays,
Sundays, or legal holidays.

(3) When the last day of the period of time computed under this section is a Saturday, Sunday, or legal
holiday, the period of time runs until the end of the next day that is not a Saturday, Sunday, or legal holiday,

Section 2. Amend § 7003, Title 25 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows and redesignating accordingly:

§ 7003. Definitions.

For purposes of this chapter:

(7)a. “Guest” or “visitor” means a person who is not a tenant or resident of a manufactured home community
and who is on the premises of the manufactured home community with the express or implied permission of a tenant or
resident of the community.

b. “Guest” or “visitor” does not include a business invitee.

(12) “Legal holiday” means a legal holiday in this State under § 501 of Title 1 or a federal holiday.

(27) (28) “Tree” for the purpose of this chapter means a woody, perennial plant at least 25 feet in height or
with a main trunk or stem that is a minimum of 6 inches in diameter. diameter and includes the root system, limbs, and
trunk or stem.

Section 3. Amend § 7008, Title 25 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 7008. Provisions of a rental agreement.

(a) All new and renewing rental agreements, including those rental agreements whose original term has expired, for a lot in a manufactured home community must contain all of the following:

(13) Provisions requiring the landlord to do all of the following:

a. Maintain and regrade the lot ~~area~~ areas, bulkheads, streets, and other grounds, where necessary and in good faith, as permitted by law, to prevent the accumulation of standing water thereon and to prevent the detrimental effects of moving water if such efforts do not cause the creation of any new accumulations of standing water or detrimental effects of moving water on another lot area. Areas defined by local, state, or federal regulations as wetlands, flood plains, tidal areas, water recharge areas, or recorded drainage systems are exempt from this ~~paragraph.~~ paragraph (a)(13)a.

f. Maintain all water, electrical, plumbing, gas, sewer, septic, and other utilities and services provided by the landlord up to the physical connection to the home in good working order, repairing these utilities and services within the earlier of 48 hours after written notification of a utility or service problem, or as soon thereafter as is practicable if a repair within 48 hours is not practicable.

l. Maintain, care for, and remove, if necessary, trees on any lot, including common areas, if the tree is at least 25 feet in height or has a main stem or trunk larger than 6 inches in diameter. ~~Such~~ For purposes of this paragraph (a)(13)L., maintenance, care, and removal means those steps required to maintain a live and healthy tree condition ~~per standard horticultural practices, in accordance with the standards as set forth by the American Association of Nurserymen.~~ under the generally accepted industry standards for tree care, the ANSI A300 Tree Care standards.

SYNOPSIS

This Act clarifies how a period of time is calculated under the Manufactured Homes and Manufactured Home Communities Act (Chapter 70 of Title 25), a landlord's maintenance responsibilities in a manufactured home community, and that business invitees are not a "guest" or "visitor" of the tenant or resident.

Under current law, § 7002(c) of Title 25, a designated period of time under Chapter 70 of Title 25 does not include weekends and legal holidays if the period of time is less than 7 days under § 5112 of Title 25. This Act changes how a period of time is calculated so that weekends and legal holidays are not counted if the period of time is 12 days or less.

This Act also requires that a landlord maintain all of the following:

1. Bulkheads, streets, and other grounds to prevent the accumulation of standing water, as permitted by law.
2. All utilities and services provided by the landlord up to the physical connection to the home.
3. The root system, limbs, and trunk or stem of trees in common areas.

This Act also updates the required standards for tree care to the generally accepted industry standards for tree care, the ANSI A300 Tree Care standards, because the American Association of Nurserymen ceased to exist on January 1, 2014.

The ANSI A300 Tree Care standards are voluntary industry consensus standards developed by the Tree Care Industry Association and written by the Accredited Standards Institute.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.